

UNITED NATIONS

HUMAN RIGHTS COUNCIL

BACKGROUND GUIDE

Upholding Human Rights During Armed Conflict

Examining violations of international humanitarian law in active conflict zones, evaluating existing protection mechanisms, and proposing frameworks for accountability, justice, and the protection of civilians in war.

LETTER FROM THE EXECUTIVE BOARD

Distinguished Delegates,

It is our privilege to welcome you to the Human Rights Council and to the agenda item, “Upholding Human Rights During Armed Conflict.” Few questions before the international community today carry the same moral weight or practical urgency. From the trenches of Eastern Europe to the ruins of Gaza and Khartoum, armed conflict continues to inflict devastating, disproportionate harm on civilians long after the guns should reasonably have fallen silent on the battlefield alone.

International humanitarian law and international human rights law were built, painstakingly, over more than a century, to place limits on the conduct of hostilities and to preserve a floor of dignity beneath which no human being should fall, even in war. Yet the record of the twenty-first century shows a persistent and troubling gap between the rules states have accepted on paper and the protection those rules deliver on the ground. Hospitals are struck. Aid convoys are blocked. Displacement is used as a weapon. Perpetrators, state and non-state alike, frequently escape meaningful accountability.

This guide does not seek to assign blame to any single actor, nor to resolve the political disputes that fuel any particular conflict. Its purpose is narrower and, we believe, more useful: to equip you with a shared factual and legal foundation — the history of the relevant law, the mechanisms that exist to enforce it, the reasons those mechanisms so often fall short, and the positions states and blocs have historically taken — so that your committee's debate can move quickly to the harder, more productive question of what a stronger framework for protection and accountability could look like.

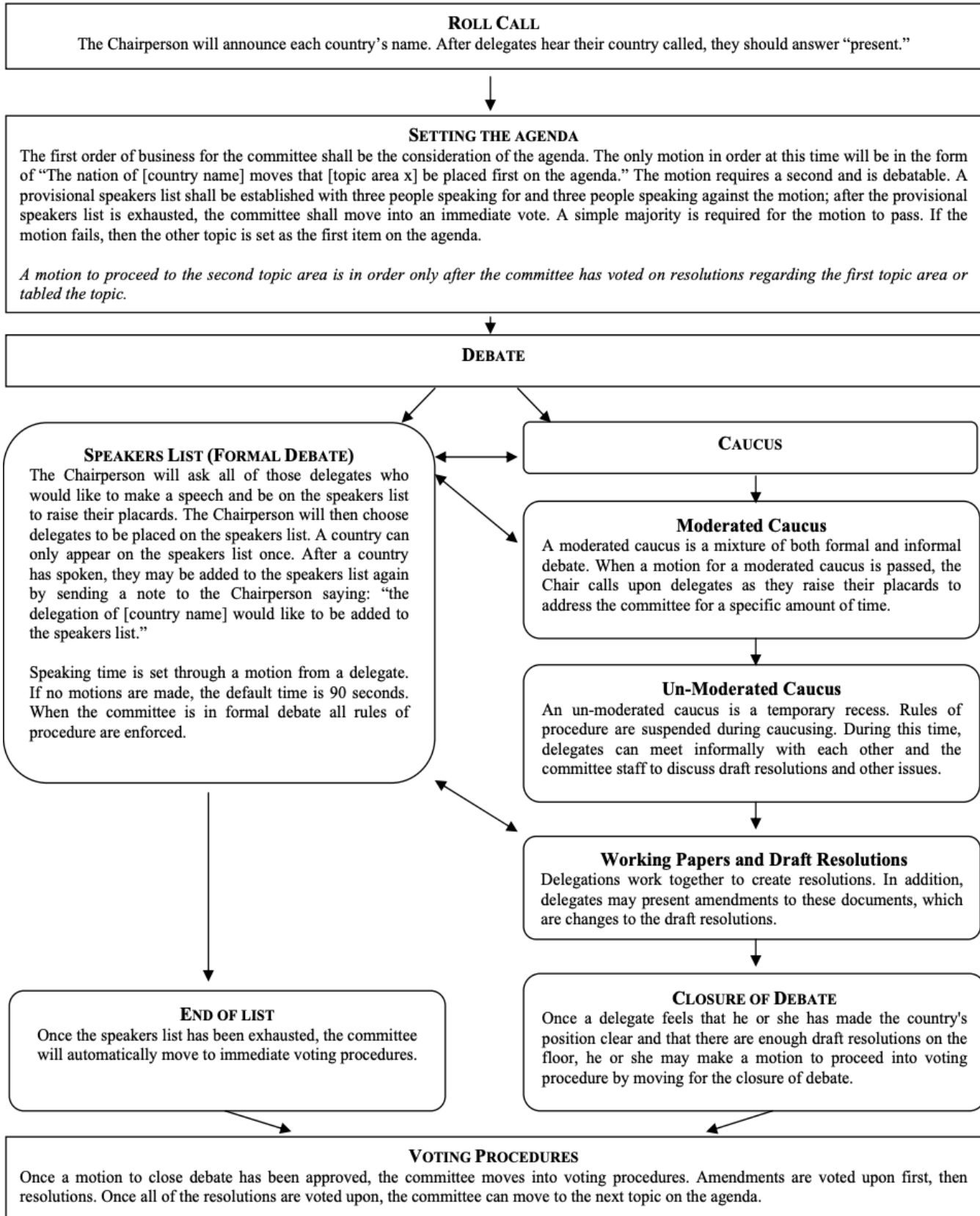
We encourage you to treat this guide as a starting point rather than an endpoint. Effective delegates will supplement it with their country's actual voting record in the Council, its treaty ratifications, and its statements in recent sessions. We look forward to a session marked by rigorous research, good-faith diplomacy, and genuine ambition to move this agenda forward.

We wish you a productive and thoughtful committee session.

Sincerely,

The Executive Board

FLOW OF DEBATE UNDER THE UNA-USA RULES OF PROCEDURE



INTRODUCTION TO THE HUMAN RIGHTS COUNCIL

Human rights are not privileges granted by governments but belong to every person simply by virtue of being human. Long before any treaty codified them, movements for dignity, freedom, and equality shaped how societies understood these entitlements. What changed with the founding of the United Nations in 1945 was that human rights finally received formal, international recognition: a shared legal and constitutional framework that countries could be held to.

To carry out its founding promise the UN built two parallel sets of tools:

- Charter-based mechanisms, which draw their authority directly from the UN Charter itself (the HRC is one of these)
- Treaty-based mechanisms, which come from specific international conventions and covenants that state voluntarily sign and ratify, each monitored by its own treaty body (for example, the Committee on the Rights of the Child monitors the Convention on the Rights of the Child).

Understanding this split matters for a delegate: it explains *why* the HRC can discuss almost any human rights issue in any country (Charter authority is broad), while a treaty body can only act on the specific rights its treaty covers.

From the UNHCR to the HRC

The **Universal Declaration of Human Rights (UDHR)**, adopted by the General Assembly in 1948, was the first attempt to write down a "common standard of achievement". For decades it stood alone as the flagship human rights text. It was eventually joined by two binding treaties: the **International Covenant on Civil and Political Rights (ICCPR)** and the **International Covenant on Economic, Social and Cultural Rights (ICESCR)**, plus their Optional Protocols. Together, these three documents are known as the **International Bill of Rights**, and they remain the foundational vocabulary of almost every HRC debate.

To actually implement the UDHR's promises, the UN Secretariat set up a dedicated department, later renamed the **Centre for Human Rights**, which relocated from New York to Geneva in the 1980s as its work expanded. Then, at the 1993 **World Conference on Human Rights**, member states created the **Office of the UN High Commissioner for Human Rights (OHCHR)**, the body that today runs the administrative and logistical backbone of nearly every UN human rights mechanism, including the HRC, the treaty bodies, and thematic working groups.

The Human Rights Council itself

The **Human Rights Council (HRC)** was established in 2006 by General Assembly resolution 60/251, replacing the earlier and more heavily criticized Commission on Human Rights. It is an **intergovernmental body of 47 member states**, elected by the General Assembly for staggered three-year terms, with seats distributed by regional group to ensure geographic balance. Membership carries real obligations: states elected to the Council are expected to uphold the highest human rights standards themselves and to cooperate fully with the Council's mechanisms, a standard the Council itself struggles to enforce consistently, since it has no power to expel or sanction a sitting member for its own record short of a two-thirds General Assembly vote (used only once, against Russia, in 2022).

The Council meets in **regular sessions** in Geneva (typically three per year, in addition to special sessions convened for emergencies), and its work is guided by the principles of universality, impartiality, objectivity, and non-selectivity, meaning it is meant to scrutinize all countries by the same standard, not just politically convenient targets. In practice, delegates should know this principle is one of the most contested aspects of the Council's legitimacy, and is worth engaging with directly in debate.

Why This Matters

Because the HRC's mandate is so broad, covering *any* human rights issue, in *any* country, at *any* time, committee sessions can range from country-specific crises to sweeping thematic debates (digital rights, migration, the rights of the unhoused, and so on). A strong delegate should walk in understanding not just what the HRC can technically do, but where its authority runs out, since the Council can investigate and recommend, but it cannot prosecute, and it depends heavily on political will from its own members to make findings stick.

INTRODUCTION TO THE AGENDA

Armed conflict has always produced human suffering, but the twentieth and twenty-first centuries produced something new: a body of international law explicitly designed to limit that suffering, even as war itself remains legal in narrow circumstances under the UN Charter. International Humanitarian Law (IHL), often called the law of armed conflict, governs the conduct of hostilities and the protection of persons who are not, or are no longer, participating in fighting. International Human Rights Law (IHRL) continues to apply, with some derogations, during conflict, and increasingly the two bodies of law are read together by courts and human rights bodies.

Today, the gap between legal commitment and battlefield reality is stark. The International Committee of the Red Cross, UN human rights bodies, and independent monitors have documented, across multiple ongoing conflicts, recurring patterns: deliberate or reckless attacks on civilians and civilian infrastructure, strikes on hospitals and humanitarian workers, the use of siege and starvation, sexual violence as a tactic of war, forced displacement, and the recruitment of children into armed groups. At the same time, mechanisms meant to hold perpetrators accountable — international courts, tribunals, and UN investigative bodies — face chronic problems of jurisdiction, enforcement, funding, political interference, and slow timelines that rarely match the pace of an active conflict.

This agenda asks your committee to do three things: (1) examine, honestly and specifically, how IHL is being violated in current conflict zones; (2) evaluate what protection and accountability mechanisms already exist and why they succeed or fail; and (3) propose a framework — whether new mechanisms, reforms to existing ones, or stronger political commitments — that could produce more meaningful protection for civilians and more credible accountability for perpetrators.

“In the twenty-first century, the rules of war are not obsolete. What is missing, too often, is the political will to enforce them.”

HISTORICAL BACKGROUND

The Origins of the Laws of War

Efforts to regulate the conduct of war predate the United Nations by centuries, but the modern legal architecture begins in the mid-nineteenth century. The 1864 Geneva Convention, prompted by Henry Dunant's account of the suffering of wounded soldiers at the Battle of Solferino, established the principle that the wounded and those caring for them should be protected from attack. This founding instrument also gave rise to the International Committee of the Red Cross (ICRC), which remains the guardian and promoter of IHL today.

The Hague Conventions of 1899 and 1907 added rules on the means and methods of warfare, including restrictions on certain weapons and the treatment of prisoners. These early instruments, however, proved wholly inadequate to prevent or limit the catastrophic civilian and military losses of the two World Wars.

The Modern Framework: 1949 and Beyond

The atrocities of the Second World War, including the deliberate targeting of civilian populations and the horrors of the Holocaust, produced a decisive shift. In 1949, states adopted the four Geneva Conventions, which remain the cornerstone of IHL and enjoy universal ratification. Together they protect: wounded and sick soldiers in the field (First Convention); wounded, sick, and shipwrecked military personnel at sea (Second Convention); prisoners of war (Third Convention); and civilians in time of war, including in occupied territory (Fourth Convention).

As warfare evolved, particularly through decolonization struggles and internal civil wars, the 1977 Additional Protocols extended and clarified protection. Additional Protocol I strengthened rules applicable to international armed conflicts, including the principle of distinction between combatants and civilians. Additional Protocol II, for the first time, established minimum protections for victims of non-international (civil) armed conflicts, which have since become the more common form of contemporary war. A Third Additional Protocol, adopted in 2005, introduced the Red Crystal as an additional protective emblem.

From Impunity to Individual Accountability

For most of the twentieth century, accountability for violations of the laws of war was pursued, when at all, through ad hoc mechanisms, most notably the Nuremberg and Tokyo tribunals after 1945. It took until the 1990s for the international community to revive this model, establishing the International Criminal Tribunal for the former Yugoslavia (ICTY) in 1993 and the International Criminal Tribunal for Rwanda (ICTR) in 1994 in response to mass atrocities in the Balkans and the Rwandan genocide. These tribunals developed significant jurisprudence, including on genocide, crimes against humanity, and command responsibility, and demonstrated that international prosecution of individuals, including heads of state, was possible.

This momentum culminated in the 1998 Rome Statute, which established the permanent International Criminal Court (ICC), the first standing international tribunal with jurisdiction over genocide, crimes against humanity, war crimes, and, since 2018, the crime of aggression. The Rome Statute entered into force in 2002 and now has over 120 states parties, though several major military powers, including the United States, Russia, China, and India, are not members.

The Human Rights Council and the Growth of Fact-Finding

Alongside criminal accountability, the UN human rights system developed its own investigative tools. Since its creation in 2006, the Human Rights Council has increasingly relied on Commissions of Inquiry, Independent International Fact-Finding Missions, and Special Rapporteurs to document violations in conflicts from Syria and Myanmar to Ukraine, Sudan, and the Occupied Palestinian Territory. These bodies do not have prosecutorial power, but their reports have become important evidentiary records feeding into national prosecutions, universal jurisdiction cases, and ICC investigations.

Despite this architecture, the historical record shows a persistent pattern: legal protections expand fastest in the aftermath of the worst atrocities, while enforcement during an active, ongoing conflict remains the weakest link in the chain. Your committee's task is, in effect, to close that gap.

IHL AND IHRL

International Humanitarian Law, sometimes called the law of armed conflict or *jus in bello*, applies specifically during armed conflict, whether international or non-international, and binds both states and non-state armed groups. Its core project is to balance military necessity against humanity: it does not seek to prevent war (that is the separate, and largely failed, project of the UN Charter's prohibition on the use of force, *jus ad bellum*), but to limit the suffering war causes. IHL's modern codification traces to the 1864 Geneva Convention, prompted by Henry Dunant's account of the wounded left to die at the Battle of Solferino, which established the founding principle that the wounded and those caring for them should not be attacked. This gave rise to the International Committee of the Red Cross (ICRC), still the treaty-recognized guardian of IHL today. The 1899 and 1907 Hague Conventions layered on restrictions on weapons and the treatment of prisoners, but neither regime prevented the catastrophic civilian and military losses of the two World Wars.

The atrocities of the Second World War, especially the deliberate targeting of civilian populations, produced the decisive rebuild: the four Geneva Conventions of 1949, which enjoy universal ratification and remain IHL's cornerstone. They protect wounded and sick soldiers in the field (I), wounded, sick, and shipwrecked personnel at sea (II), prisoners of war (III), and civilians in wartime, including under occupation (IV). As warfare shifted toward decolonization struggles and internal civil wars, the 1977 Additional Protocols extended coverage: Protocol I strengthened rules for international armed conflicts, including the principle of distinction; Protocol II, for the first time, established minimum protections for victims of *non-international* armed conflict, now the dominant form of contemporary war. A Third Additional Protocol (2005) added the Red Crystal emblem.

International Human Rights Law, by contrast, applies at all times, peace and war alike, and binds states in their relationship with individuals rather than binding all parties to hostilities symmetrically. Its core instruments are the Universal Declaration of Human Rights (1948) and the two binding covenants that followed it, the ICCPR and ICESCR. Unlike IHL, IHRL permits derogation: a state facing a declared public emergency may lawfully suspend certain rights, but a hard core, the prohibition on torture, the non-derogable aspects of the right to life, and a handful of others, can never be suspended, war or no war.

The tension this generates is not cosmetic. IHL is built to be permissive about killing (a lawful combatant may kill an opposing combatant) in a way IHRL, built around the state's duty not to arbitrarily deprive anyone of life, is not. When both regimes apply simultaneously, as they now are understood to do in almost every conflict, courts and UN bodies need a rule for which one governs a given act. That rule is contested, and the contest is the subject of the next section.

HOW THE IHL AND IHRL ACTUALLY RELATE

Lex Specialis

The conventional shorthand is that IHL functions as *lex specialis*, the more specific law that displaces the more general IHRL rule, in the conduct of hostilities. This phrase is now standard in Council debates, but delegates should know that it is younger, and shakier, than it sounds. Scholarship tracing the maxim's use shows that international lawyers began invoking *lex specialis* to describe the IHL-IHRL relationship only after the International Court of Justice's 1996 *Legality of the Threat or Use of Nuclear Weapons* advisory opinion, despite the Latin phrase's much older pedigree as a general conflict-of-laws principle. In that opinion, the Court held that the right to life under the ICCPR does not cease to apply during armed conflict, but that "the test of what is an arbitrary deprivation of life... falls to be determined by the applicable *lex specialis*, namely, the law applicable in armed conflict." The Court was not saying IHRL disappears in wartime. It was saying that IHRL's own standard (was this killing "arbitrary"?) gets *interpreted through* IHL's rules on lawful targeting.

The Court refined this further in two subsequent rulings. In the 2004 *Wall* advisory opinion concerning Israel's construction of a barrier in the Occupied Palestinian Territory, the ICJ held that IHRL treaties do not stop applying merely because a state is engaged in armed conflict or occupation; some rights are matters purely of IHL, some purely of IHRL, and some fall under both, requiring the two bodies of law to be read together rather than one simply replacing the other. In *DRC v. Uganda* (2005), the Court went further still, finding Uganda in violation of both IHL and IHRL obligations for the same underlying conduct during its occupation of parts of Congolese territory, treating the two regimes as cumulative rather than mutually exclusive.

The Soleimani Case

If any single event exposed how unstable this doctrine really is, it was the United States' January 2020 drone strike that killed Iranian General Qassem Soleimani in Iraq. The strike forced international lawyers to confront a genuinely hard question: was this an act of armed conflict governed by IHL's targeting rules, or a peacetime killing governed by IHRL's much stricter prohibition on arbitrary deprivation of life? The ICRC's own case analysis concluded that a lawful targeted killing must satisfy *all* applicable legal regimes at once, *jus ad bellum*, *jus in bello*, and IHRL, and found that "in light of the evidence that the US has provided to date, the targeting of General Soleimani... constitute[s] an arbitrary killing for which, under IHRL, the US is responsible," treating IHRL as independently operative rather than displaced by any IHL "lex specialis" defense.

Legal commentary went further, with one influential essay titled "The Soleimani Case and the Last Nail in the Lex Specialis Coffin" arguing that the killing exposes the maxim as doctrinally incoherent outside a genuine, ongoing armed conflict: a single, isolated inter-state strike against a target on

foreign soil, absent a pre-existing state of hostilities between the US and Iran, cannot simply borrow IHL's permissive targeting rules by declaring itself part of an "armed conflict" after the fact. The argument is that the "test of what is an arbitrary deprivation of life" does *not* fall to be determined by IHL at all in such cases, but by an independent standard proper to IHRL itself, precisely because IHL's applicability threshold was never properly crossed. A parallel debate in the same episode asked the opposite question: assuming IHL *did* apply from the very first moment of the strike, does that automatically immunize the killing from any IHRL scrutiny at all, or do the two regimes still operate cumulatively as the ICJ suggested in *Wall*? The unresolved status of this exact question, seven years after Soleimani's death, is the single clearest illustration you can put in a speech of why "IHL is *lex specialis*, case closed" is not an adequate legal argument in committee.

Why this matters practically: UN Commissions of Inquiry and Special Rapporteurs increasingly assess conduct against both frameworks simultaneously, for instance evaluating whether a strike met IHL's distinction and proportionality tests *and* whether the state fulfilled its IHRL duty to investigate the resulting deaths. A resolution that only invokes IHL, or only IHRL, misses half of what modern human rights bodies actually do, and Soleimani is the case that proves why the omission is not a technicality.

JURISDICTION BEYOND BORDERS

A separate, related fault line concerns *where* human rights obligations apply, not just how they interact with IHL. Most human rights treaties bind a state toward people "within its jurisdiction." What does that mean when a state's soldiers, drones, or missiles act outside its own territory, precisely the scenario at the center of most contemporary armed conflict?

The European Court of Human Rights answered this question in two irreconcilable-seeming ways within a decade. In *Banković and Others v. Belgium* (2001), arising from a NATO airstrike that struck a Belgrade radio and television tower during the Kosovo campaign, killing several applicants, the Court held that jurisdiction under Article 1 of the European Convention is "primarily territorial," and that extraterritorial jurisdiction is "exceptional," requiring "special justification." The Court explicitly rejected the applicants' "cause and effect" theory, warning it would produce a dangerous, unlimited expansion of state liability for any military action anywhere in the world, and declared the application inadmissible. Crucially, *Banković* also held that Convention rights could not be "divided and tailored," an all-or-nothing conception of jurisdiction that made it very difficult for victims of extraterritorial state violence to bring any claim at all.

A decade later, in *Al-Skeini v. United Kingdom* (2011), concerning deaths of Iraqi civilians at the hands of British troops during the occupation of Basra, the Court moved sharply away from *Banković*'s narrow "espace juridique" logic without formally overruling it. The Grand Chamber held that extraterritorial jurisdiction can also arise through the "state agent authority" model: where a state, through its agents, exercises authority and control over an individual abroad, whether through military occupation, or through the consent, invitation, or acquiescence of the territorial government, it may owe that individual Convention obligations regardless of territory. *Al-Skeini* explicitly accepted that Convention rights *can* be divided and tailored to the circumstances of extraterritorial control, directly reversing the all-or-nothing logic of *Banković*.

The doctrinal result is genuinely unsettled, not merely academic hairsplitting. Scholarship on the post-*Al-Skeini* landscape describes the Court as oscillating between the "spatial model" (effective control over territory) and the "personal model" (authority and control over an individual) without ever fully retiring either, producing case-by-case uncertainty about exactly when a state's human rights obligations follow its own armed forces abroad. This matters directly for this agenda: coalition airstrikes, drone campaigns, and multinational peacekeeping and stabilization operations all raise the *Banković*-versus-*Al-Skeini* question, and a resolution that assumes IHRL simply "applies" wherever a state's forces operate is glossing over a genuine, live jurisprudential fight that determines whether victims of foreign military action have any human rights forum to turn to at all.

FROM IMPUNITY TO INDIVIDUAL ACCOUNTABILITY

For most of the twentieth century, violations of the laws of war went essentially unpunished except through the ad hoc victors' justice of Nuremberg and Tokyo after 1945. It took until the 1990s for international law to revive the model of individual criminal accountability for atrocity, and the doctrine it built along the way is central to this agenda.

Command responsibility. The International Criminal Tribunal for the former Yugoslavia (ICTY, est. 1993) and the International Criminal Tribunal for Rwanda (ICTR, est. 1994) were the first postwar bodies to develop sustained jurisprudence on how superiors, not just the individuals who pull the trigger, can bear criminal responsibility for atrocities committed by their subordinates. The landmark ICTY *Čelebići* (Delalić) judgment of 1998 set out the doctrine's three elements: a superior-subordinate relationship of effective control; the superior knew, or had reason to know, that a subordinate was about to commit or had committed a crime; and the superior failed to take necessary and reasonable measures to prevent or punish it. Crucially, the Trial Chamber rejected pure negligence as sufficient for liability, requiring actual or constructive knowledge, a standard later distilled into Article 28 of the Rome Statute. This doctrine is not a historical footnote. It is the legal hook by which today's Commissions of Inquiry try to trace mass civilian harm in Gaza, Sudan, and Ukraine up a chain of command rather than treating it as the isolated conduct of individual soldiers.

The permanent court. This momentum culminated in the 1998 Rome Statute, establishing the International Criminal Court (ICC), the first standing tribunal with jurisdiction over genocide, crimes against humanity, war crimes, and, since 2018, the crime of aggression. The Rome Statute entered into force in 2002 and now has over 120 states parties, but several major military powers, the United States, Russia, China, and India, are not members, a gap whose consequences dominate Section 6.

The Council's own toolkit. Since its 2006 creation, the HRC has built a parallel, non-criminal investigative track: Commissions of Inquiry and Independent International Fact-Finding Missions for Syria, Myanmar, Ukraine, and the Occupied Palestinian Territory, and thematic and country-specific Special Rapporteurs. These bodies carry no prosecutorial power, but their reports increasingly function as evidentiary infrastructure feeding later ICC investigations, ICJ proceedings, and universal jurisdiction prosecutions in domestic courts. The historical pattern is consistent and worth stating plainly in your speeches: legal protections expand fastest in the immediate aftermath of the worst atrocities, while enforcement during an *active*, ongoing conflict remains the system's weakest link. Your committee's task is functionally to close that gap, not to write another declaration about it.

THE ARCHITECTURE OF ACCOUNTABILITY

The International Criminal Court

The ICC does not have primary jurisdiction over international crimes; it operates on the principle of complementarity under Article 17 of the Rome Statute, meaning a case is inadmissible before the Court if a state with jurisdiction is already investigating or prosecuting it in good faith, *unless* that state is "unwilling or unable genuinely" to do so. The Court's own jurisprudence, following the Informal Expert Paper on complementarity and later adopted by the Appeals Chamber in *Katanga*, splits this into two distinct scenarios: cases of pure *inaction*, where no domestic proceedings exist at all, in which the case is simply admissible without any inquiry into willingness or ability; and cases where domestic proceedings are genuinely underway, which trigger the harder unwillingness/inability analysis. Article 17(2) sets out three specific markers of unwillingness: proceedings undertaken to shield the person from responsibility, unjustified delay inconsistent with an intent to prosecute, and a lack of independence or impartiality in the proceedings.

This sounds neutral on paper. Recent scholarship argues it is not neutral in effect. A 2025 *Journal of International Criminal Justice* analysis, "Complementarity (Un)Fairness," argues that complementarity structurally advantages powerful states: because the test only asks whether *some* domestic investigation exists and is not a sham, a well-resourced state can insulate its nationals from the ICC merely by opening an investigation, however limited in scope or lenient in outcome, while a state with a "total or substantial collapse" of its judicial system (the Rome Statute's own language for inability) cannot even clear that low bar. The practical result is a Court whose docket is disproportionately composed of situations in weaker, often African, states, feeding a long-running and legitimate criticism voiced by the African Union and others that the ICC operates unevenly. Delegates from the Global South bloc in particular should be ready to argue this point with the doctrine, not just the general accusation of bias: it is the *structure* of Article 17, not merely political targeting, that produces this skew.

Beyond complementarity, the Court's practical weaknesses are structural: it has no independent police force and depends entirely on state cooperation to execute arrest warrants; several major powers remain outside the Statute altogether; and a Security Council referral, one of the three routes into the Court's jurisdiction over non-states-parties, can itself be blocked by a single permanent member's veto, exactly as happened with Syria (see below).

Syria: The Referral That Never Happened

The clearest single case study of the veto blocking ICC accountability is Syria. On 22 May 2014, France put forward a draft Security Council resolution to refer the situation in Syria to the ICC, co-sponsored by 65 UN member states, an unusually large sponsorship bloc reflecting broad international support. The resolution received 13 votes in favour and zero abstentions; only Russia and China voted against it, and because both are permanent members, that was enough to kill it. It

was the fourth time Russia and China had jointly vetoed a Syria-related resolution since the conflict began in 2011. Human Rights Watch called the vetoes a betrayal of Syrian victims, noting the resolution had a level of Council and broader UN membership support that, on almost any other issue, would have been more than sufficient to pass. Syria remains the single most-cited example in Council debate of how one veto can override not just a majority of the Security Council but a supermajority of the entire UN membership, and it is the case delegates should reach for whenever discussing reform of the referral mechanism or the Veto Initiative described in Section 9.

The International Court of Justice

The ICJ settles disputes between states and rules on state responsibility under treaties like the Genocide Convention, most visibly in the ongoing proceedings concerning Gaza and the case of *The Gambia v. Myanmar*. In January 2020, the Court issued provisional measures ordering Myanmar to take all measures within its power to prevent genocidal acts against the Rohingya, to ensure its military does not commit such acts, and to preserve evidence. In July 2022, by fifteen votes to one, the Court rejected Myanmar's preliminary objections and confirmed it has jurisdiction to hear the merits. This case is instructive precisely because of what it cannot do: the ICJ has no enforcement mechanism beyond referral to the Security Council, where a veto can block any follow-up, and, as the Court itself has emphasized, its role in a case like this "does not extend to determining the criminal responsibility of individuals," a separate track that runs through the ICC or domestic courts instead. A provisional measures order is binding, but binding is not the same as enforced, a distinction your resolution should not blur.

Hybrid Tribunals and Universal Jurisdiction

Where the ICC lacks jurisdiction or added local legitimacy is desired, the international community has used hybrid tribunals blending international and domestic law and personnel, such as the Special Court for Sierra Leone and the Extraordinary Chambers in the Courts of Cambodia. These can be established faster than a full international mechanism but depend heavily on host-state cooperation and sustained funding. Separately, a growing number of domestic courts, especially in Europe, have prosecuted individuals for international crimes committed abroad under universal jurisdiction statutes, most notably in cases connected to the Syrian conflict. This has become an increasingly important, if resource-intensive, complement to international courts precisely because it does not require Rome Statute membership or Security Council action.

UN Human Rights Council Mechanisms, and the Evidence-Standard Gap

Commissions of Inquiry and Fact-Finding Missions are ad hoc, Council-mandated bodies that investigate and publicly report on specific situations; their findings carry no binding force but often become the evidentiary backbone for later prosecutions. Special Rapporteurs and Independent Experts hold thematic or country mandates on matters such as extrajudicial killings and torture. The Universal

Periodic Review examines every member state's human rights record roughly every four to five years but relies entirely on voluntary follow-up.

A more specialized innovation is the evidence-preservation body, and Myanmar offers the clearest illustration of why these bodies had to be invented as something distinct from a standard fact-finding mission. The Independent International Fact-Finding Mission on Myanmar, which produced the 2018 findings that acts against the Rohingya may have amounted to genocide, used the human-rights-documentation standard of "reasonable grounds to conclude," a comparatively low evidentiary bar appropriate for public advocacy and truth-telling, but not for a criminal courtroom. Once the Council decided that individual prosecutions should follow, it had to establish a separate body, the Independent Investigative Mechanism for Myanmar (IIMM), created by Resolution 39/2 in September 2018, explicitly because the Fact-Finding Mission's own evidentiary standard was inadequate for building prosecutable cases. The IIMM's own guidance is explicit about the difference: criminal investigation requires proof "beyond a reasonable doubt" or to the "intimate conviction" of the fact-finder, a fundamentally higher bar than "reasonable grounds," and requires different methodology entirely, chain-of-custody rules for evidence, and the collection of exculpatory as well as incriminatory material, which a human-rights fact-finding mission is not built to do. The IIMM is explicitly not a police force, prosecutor, or court; its sole function is to collect, preserve, and analyze evidence and prepare case files for whichever national, regional, or international court eventually has jurisdiction and the willingness to try the case, a design that assumes, correctly, that jurisdiction may not exist yet but should not be allowed to arrive too late to matter. The IIMM will only share files with courts that meet international fair-trial standards and will not impose capital punishment, a further conditionality worth noting in any resolution language modeling a similar mechanism for another conflict.

For your committee, the IIMM model is directly transferable: any resolution proposing new evidence-preservation machinery for Sudan or another active conflict should specify which evidentiary standard it is building toward, advocacy-grade "reasonable grounds" or prosecution-grade "beyond reasonable doubt", because that choice determines the entire design of the mechanism, not just its output.

MANDATE POLITICS

The mechanisms above assume that once the Council creates an investigative body, it continues. Yemen shows this assumption can fail, and it is the sharpest illustration in recent Council history of how member-state politics can dismantle the Council's own accountability infrastructure from within.

The Group of Eminent International and Regional Experts on Yemen (GEE) was established by the Council in 2017 to conduct a comprehensive examination of violations by all parties to the Yemen conflict since September 2014, and to identify those responsible where possible. It was the only international, independent mechanism investigating abuses by every side of the war, including the Saudi-led coalition. The Council renewed its mandate in 2018, 2019, and 2020. On 7 October 2021, however, the Council rejected a draft resolution to renew the GEE's mandate for a further two years, by a roll-call vote of 21 against, 18 in favour, and 7 abstentions; three of the states voting against renewal were Russia, China, and Bahrain, with Saudi Arabia and other coalition partners widely reported to have led an intensive diplomatic campaign against renewal in the months prior. Because the Council's own rules require an affirmative vote to continue a mandate rather than an affirmative vote to end one, a state seeking to kill an investigation only needs to defeat renewal, a structurally easier task than needing a majority to actively terminate an ongoing mechanism.

The GEE itself, in its closing statement, noted that its mandate would "effectively come to an end" at the close of that Council session. Human Rights Watch, Amnesty International, and the International Commission of Jurists all condemned the vote, with the ICJ (the non-profit, not the World Court) explicitly calling on the General Assembly to fill the accountability gap the Council's own failure to renew had created, an argument that maps directly onto the Uniting for Peace and Veto Initiative logic discussed in Section 9, except applied to the Council rather than the Security Council. The Yemen case is the single clearest illustration available to your committee that the Council's authority is not just externally constrained by what it cannot compel states to do; it is internally fragile, dependent on a rolling majority of its own 47 members choosing, session after session, to keep an investigation alive. A resolution addressing accountability gaps in this agenda should consider whether investigative mandates ought to have a different renewal threshold, an automatic extension absent a majority vote to terminate, for instance, rather than the reverse, or whether that would simply shift the political fight to a different procedural moment without resolving it.

CURRENT SITUATION: ILLUSTRATIVE CASE STUDIES

The following case studies are illustrative, not exhaustive, and are presented to ground committee debate in specific, documented patterns of harm rather than abstract discussion. Delegates should treat the figures below as approximate and drawn from UN and humanitarian reporting current as of mid-2026; conflicts are dynamic, and delegates are strongly encouraged to research the latest developments before committee.

Gaza and the Occupied Palestinian Territory

Following the escalation of hostilities after the events of 7 October 2023, Gaza experienced one of the most intensive urban military campaigns in recent history, with UN agencies and human rights bodies documenting mass civilian casualties, widespread destruction of housing and infrastructure, and repeated strikes on hospitals, schools, and UN facilities. An October 2025 ceasefire agreement, built around a broader US-brokered peace framework endorsed by the Security Council, paused large-scale hostilities and enabled a hostage-and-detainee exchange and an increase in humanitarian aid deliveries.

Reporting through mid-2026 indicates that implementation of the ceasefire's later phases, including full withdrawal, reconstruction, and a transitional governance arrangement, has proceeded slowly and unevenly, with the arrangement described by UN officials as fragile and punctuated by continued strikes and violence. Humanitarian organisations continue to report severe shortages of food, shelter, medical care, and clean water, alongside restrictions on the operations of UN relief agencies. This case illustrates the difficulty of translating a negotiated pause in fighting into durable civilian protection, accountability for alleged violations committed during the conflict, and a credible pathway to reconstruction.

Sudan

Since fighting erupted between the Sudanese Armed Forces and the paramilitary Rapid Support Forces in April 2023, Sudan has descended into what UN agencies now describe as the world's largest displacement and humanitarian crisis. By 2026, tens of millions of people required humanitarian assistance, with famine conditions confirmed or feared in parts of Darfur and Kordofan, and more than a dozen million people forced from their homes, including several million who fled across international borders.

Both parties to the conflict have been accused of obstructing humanitarian access, and monitors have documented systematic attacks on healthcare facilities and workers, sexual violence, and ethnically targeted killings in Darfur reminiscent of the atrocities investigated by the ICC in the 2000s. The Sudan case highlights how a civil war can escalate in severity even as international attention shifts elsewhere, and how humanitarian funding shortfalls can compound the effects of IHL violations on the ground.

Ukraine

The full-scale invasion of Ukraine beginning in February 2022 prompted an unusually rapid and coordinated international legal response, including an ICC investigation, an arrest warrant against senior Russian officials over the alleged unlawful deportation of children, and the establishment of a UN Independent International Commission of Inquiry. Documented concerns have included attacks on energy and civilian infrastructure, the treatment of prisoners of war, and allegations of unlawful transfer of civilians. The case demonstrates both the possibility of swift international legal mobilisation when major powers are directly engaged, and the limits of enforcement against a state that rejects the jurisdiction of the relevant court.

Myanmar

Since the 2021 military coup, Myanmar's armed forces have been engaged in sustained conflict with resistance forces and ethnic armed organisations across multiple regions. This sits alongside the earlier, extensively documented 2017 military campaign against the Rohingya population in Rakhine State, which a UN Fact-Finding Mission characterised as involving acts committed with genocidal intent. Myanmar remains the subject of an ongoing case at the International Court of Justice under the Genocide Convention and an ICC investigation limited to crimes with a cross-border element, illustrating how jurisdictional gaps can complicate accountability even where a UN body has made serious findings.

Other Situations of Concern

Delegates should also be aware of the protracted conflict in Yemen, where a fragile truce has reduced but not ended hostilities amid one of the world's worst humanitarian crises; the conflict and displacement crisis in the Sahel region, particularly Mali and Burkina Faso; and ongoing violence involving armed groups in the eastern Democratic Republic of the Congo. Each situation reflects the broader pattern this agenda addresses: civilians bearing the overwhelming burden of conflicts driven by state and non-state actors alike.

R2P

No accountability mechanism is more contested, or more relevant to this agenda, than the Responsibility to Protect (R2P), unanimously endorsed by the 2005 World Summit. R2P rests on three pillars: first, that each state bears the primary responsibility to protect its own population from genocide, war crimes, ethnic cleansing, and crimes against humanity; second, that the international community has a responsibility to assist states in fulfilling that duty; and third, that if a state manifestly fails to protect its population, the international community has a responsibility to take timely and decisive action, through the Security Council, up to and including coercive measures.

Scholarship converges on a specific pattern of critique: the first and second pillars are relatively uncontroversial, restating obligations that already exist under human rights and genocide law, but the third pillar is where the doctrine becomes very vague and unclear in terms of legitimate legal basis and effectiveness. The criticisms cluster around a few recurring lines. Some scholars argue R2P is a continuation of postcolonial logics that legitimize interference by powerful states in the affairs of weaker ones; others argue it is too militaristic, providing rhetorical cover for force used for other ends; still others argue it has simply failed to produce results in the mass-atrocity cases that matter most. The sharpest formulation came from the floor of the General Assembly itself in 2009, when the Assembly's President described R2P as "redecorated colonialism." A more recent, sympathetic-but-critical strand of scholarship argues that fixating on R2P's third pillar and the Security Council has actually obscured the substantive atrocity-prevention work UN bodies do outside that pillar entirely, work your committee's mechanisms (Commissions of Inquiry, Special Rapporteurs, early-warning reporting) are already doing.

THE VETO PROBLEM

The Security Council can refer situations to the ICC, authorize peacekeeping and protection-of-civilians mandates, impose sanctions, and establish arms embargoes, but its effectiveness on this agenda is persistently constrained by the veto power of its five permanent members, as the Syria referral in Section 6 demonstrates concretely. This is not a new complaint; the international community's first serious attempt to build a workaround is now seventy-five years old.

Uniting for Peace (1950). When the USSR's veto threatened to paralyze the Council's response to the Korean War, the General Assembly adopted Resolution 377A(V), "Uniting for Peace," by a vote of 52 to 5, on 3 November 1950. The resolution asserts that where the Security Council fails to exercise its primary responsibility for maintaining peace, owing to a lack of unanimity among the permanent members, the General Assembly may itself consider the matter and recommend collective measures, including, controversially, the use of armed force, to restore international peace and security. It requires either a Council procedural vote (which cannot itself be vetoed) of any nine members, or a request from a majority of UN member states, to convene an emergency special session. The mechanism has been invoked roughly a dozen times since 1950, on issues from the Suez and Hungarian crises of 1956 to, more recently, Ukraine. Scholars are divided on whether it still matters: one prominent assessment argues the resolution itself is largely unnecessary today because the Assembly's power to recommend collective measures when the Council is deadlocked flows directly from the Charter's own Articles 10, 11, and 14, with or without the 1950 resolution as a formal peg.

The Veto Initiative (2022). In direct response to Russia's veto of a Ukraine-related draft resolution, the General Assembly adopted Resolution 76/262 on 26 April 2022, by consensus, co-sponsored by roughly 83 states across every regional group. This resolution does not override a veto; it creates a standing procedural mandate requiring an Assembly debate within ten days whenever any permanent member casts a veto in the Security Council, explicitly grounding this obligation in Charter Articles 10, 11, and 14 and citing Uniting for Peace as precedent. It is a transparency and accountability mechanism, not a substitute for Council action, but it is the most significant structural reform of Council-Assembly dynamics in a generation, and it is squarely relevant to any resolution language your committee drafts about improving accountability when the Council is blocked, precisely the scenario that killed the 2014 Syria referral.

The core lesson for delegates: the General Assembly has real, Charter-grounded tools to act when the Council is deadlocked, and those tools have been used by both sides of the Cold War and post-Cold War divide opportunistically, not consistently by any one bloc. A resolution invoking Uniting for Peace or the Veto Initiative should show awareness that these are recommendatory, not binding, mechanisms; they generate political pressure and international attention, not enforceable orders, and they would not, by themselves, have produced an ICC referral for Syria in 2014.

BLOC POSITIONS

The following groupings are general tendencies observed in past Council debates and should not be read as fixed or monolithic; individual states within each bloc often diverge significantly, and delegates should always ground their position in their specific country's actual record, treaty commitments, and recent statements.

8.1 Western States and Allies

Many Western European states, along with close allies, have historically emphasised support for the ICC, robust Council fact-finding mandates, and targeted sanctions regimes. This bloc is frequently criticised by others for what is perceived as selective application of these tools depending on whether an ally or adversary is implicated, particularly regarding the Middle East.

8.2 The United States

The United States has provided significant support for select international accountability efforts, including the tribunals for the former Yugoslavia and Rwanda and, more recently, the investigation into the situation in Ukraine, while remaining a non-party to the Rome Statute and historically resistant to ICC jurisdiction over its own nationals or those of close allies. US positions on this agenda often stress sovereignty protections alongside case-by-case support for accountability mechanisms it views as serving its interests.

8.3 Russia and Aligned States

Russia, along with a number of aligned states, has generally opposed expansion of ICC jurisdiction and Council fact-finding mandates it views as politically motivated or as infringements on state sovereignty, while emphasising Security Council primacy and non-interference in matters it considers internal or subject to great-power dynamics.

8.4 China and Like-Minded States

China and a number of developing states have consistently emphasised state sovereignty, non-interference, and a preference for dialogue and cooperation over naming-and-shaming resolutions or country-specific mandates, arguing that the Council's tools are too often applied unevenly against the Global South.

8.5 The Global South and Non-Aligned Movement

A large and diverse group of African, Asian, and Latin American states has pressed for the Council's accountability tools to be applied consistently across all conflicts, regardless of the power or alliances of the state involved, and has called for greater resourcing of humanitarian response and reconstruction alongside any accountability process. Many of these states are also directly affected by

ongoing conflicts and displacement, giving them a strong practical stake in stronger protection frameworks.

8.6 Small and Middle Powers

States without major-power alignments, including several in Europe, Latin America, and the Asia-Pacific, have often played bridge-building roles, championing thematic initiatives such as the protection of children in armed conflict, protection of humanitarian workers, and procedural reforms to make Council mechanisms faster and better resourced.

QUESTIONS A RESOLUTION MUST ANSWER (QARMA)

- What specific gaps in the current IHL and IHRL enforcement architecture should this committee prioritise addressing, and why?
- How can the Council strengthen or better resource existing mechanisms (Commissions of Inquiry, Special Rapporteurs, the UPR) rather than duplicating them with new bodies?
- Should the resolution reference the Uniting for Peace mechanism or the 2022 Veto Initiative as tools for the General Assembly to act when the Council is deadlocked by a veto on an atrocity situation, and if so, in what specific, actionable terms rather than a general endorsement?
- Does the structure of ICC complementarity under Article 17 systematically disadvantage states with weaker judicial capacity, regardless of political intent, and if so, what reform, if any, could correct this without eliminating complementarity altogether?
- How should the resolution balance state sovereignty with the international community's responsibility to protect civilians in conflict?
- What concrete measures can improve humanitarian access and protect aid workers and medical personnel in active conflict zones, and how does the answer differ between a state party to the Rome Statute and one that is not?
- How can evidence of violations be better preserved and shared to support future prosecutions, even where no current forum has jurisdiction?
- What mechanisms can address the disproportionate impact of conflict on women, children, and displaced populations, including conflict-related sexual violence and child recruitment?
- How can accountability mechanisms be applied more consistently across conflicts to address legitimate concerns about selectivity and double standards?
- What role should regional organisations play in complementing UN-level protection and accountability efforts?
- How should the resolution address violations by non-state armed groups, which are not parties to the Geneva Conventions or Additional Protocols and may not consider themselves bound by IHL at all?
- Should Human Rights Council investigative mandates, such as the Yemen Group of Eminent Experts, have a different renewal threshold, for instance an automatic extension absent an affirmative vote to terminate, given how easily a defeat of renewal can end an investigation compared to the higher bar of an affirmative vote to end one?

10. BIBLIOGRAPHY AND FURTHER RESEARCH

Delegates are strongly encouraged to consult primary sources directly. The following starting points are recommended:

- United Nations Human Rights Council — official sessions, resolutions, and mandate-holder reports (ohchr.org)
- International Committee of the Red Cross — IHL databases, commentaries, and casebook (icrc.org)
- International Criminal Court — situations, cases, and preliminary examinations (icc-cpi.int)
- International Court of Justice — contentious cases and advisory opinions (icj-cij.org)
- UN Office for the Coordination of Humanitarian Affairs — country situation reports (unocha.org)
- UN Security Council Report — monthly forecasts and country-specific analysis (securitycouncilreport.org)
- Reports of relevant Commissions of Inquiry and Independent International Fact-Finding Missions (available via the OHCHR website)
- Human Rights Watch and Amnesty International annual and country-specific reports

This guide was prepared for committee research purposes and reflects publicly reported information available as of mid-2026. Delegates should verify current developments before and during committee, as conflict situations evolve rapidly.